

types of vehicular riding, water sports, recreational or scenic areas and which is not a (1) city street or highway or (2) county, state or federal highway or (3) public street or highway of a joint highway district, boulevard district, bridge and highway district or similar district formed for the improvement or building of public streets or highways.” (Gov. Code § 831.4(a), (b).)

“Whether a property is considered a ‘trail’ under section 831.4 turns on ‘a number of considerations,’ including (1) the accepted definitions of the property, (2) the purpose for which the property is designed and used, and (3) the purpose of the immunity statute.” (*Lee v. Dept. of Parks & Recreation* (2019) 38 Cal.App.5th 206, 211 [citing *Amrberger-Warren v. City of Piedmont* (2006) 143 Cal.App.4th 1074, 1078-1079].)

Here, there are disputed facts as to whether the three factors justify applying trail immunity to the location of Plaintiff Jon Sterkel’s injuries.

Accepted Definitions

It is undisputed that on the day of the accident, Plaintiff was traveling a bike route that runs through the middle of a parking lot and/or road at Doheny State Beach Park. (Def.’s Sep. St. Nos. 1, 5-6, 11, 12; see Pltfs.’ Sep. St. [disputing other grounds].) Here, there are disputed facts as to whether the location can be defined as a “public street,” which precludes the application of trail immunity. (See Def.’s Sep. St. No. 6; Pltfs.’ Sep. St. Add. No. 6 [and evidence cited therein].)

Purpose of Design and Use

Defendant submits evidence that the bikeway is classified by the county as a Class III bikeway. (Def.’s Sep. St. No. 1 [and evidence cited therein].) While there is case law applying trail immunity to Class I bikeways (*Prokop v. City of Los Angeles* (2007) 150 Cal.App.4th 1332, 1336, 1342-1343), there is no case law extending trail immunity to Class III bikeways. Class I bikeways are defined as “[b]ike paths or shared use paths . . . which provide a completely separated right-of-way designated for the exclusive use of bicycles and pedestrians with crossflows by motorists minimized.” (Streets & Hwys. Code, § 890.4, subd. (a).) Class III bikeways, on the other hand, are “bike routes . . . which provide a right-of-way on-street or off-street, designated by signs or permanent markings and shared with pedestrians and motorists. (Streets & Hwys. Code, § 890.4, subd. (c).) In this case, the bike

route passes over and parallel to the parking lot and/or roadway. (See Def.’s Sep. St. Nos. 1, 6, 18, 20 [and evidence cited therein].)

Trail immunity may apply to mixed use trails. (See, e.g., *Armenio v. County of San Mateo* (1994) 28 Cal.App.4th 413, 415 [trail immunity covered a “scenic linear park” that consisted of “a 6.2 mile surfaced trail with rest areas for bicyclists, hikers, joggers, and equestrians”]; *Nealy v. Orange County* [hiking and bicycling trail].) In *Burgueno v. The Regents of the University of California*, the plaintiff was fatally injured while commuting by bicycle on a paved bike path used for both recreational and non-recreational bicycling. (*Burgueno, supra*, 243 Cal.App.4th at pp. 1055, 1061.) Pedestrians and public vehicular traffic, however, were generally not permitted on the bikeway. (*Id.* at p. 1055.) The *Burgueno* court noted the purpose of the immunity is to encourage public entities to open their property for public recreational use and affirmed the trial court’s granting of summary judgment, concluding the dual recreational and non-recreational use does not preclude trail immunity under section 831.4. (See *id.*, at pp. 1059-1060.)

Trail immunity may also extend to a bikeway that includes limited vehicle traffic. (See, e.g., *Hartt v. County of Los Angeles* (2011) 197 Cal.App.4th 1391, 1402 [access trail used by bicyclists and maintenance vehicles to access various parts of the park]; *Burgueno v. The Regents of the Univ. of Cal.* (2015) 243 Cal.App.4th 1052, 1055 [trail was occasionally accessed by university service vehicles and emergency vehicles].) In *Hartt v. County of Los Angeles*, a bicyclist was killed while using an access road in a county park, which was used both for recreational purposes and for maintenance vehicle access to various and sundry locations within the park. (*Hartt, supra*, 197 Cal.App.4th at p. 1400.) The court held that the dual or mixed use of the trail did not circumvent trail immunity. (*Ibid.*)

Here, it is undisputed that the bikeway has multiple current uses, including parking lot, vehicle traffic, recreational pedestrian traffic, and recreational bicycle traffic—although all uses are recreational. (See Def.’s Sep. St. Nos. 4-6 [and evidence cited therein]; Pltfs.’ Sep. St. Nos. 4-6 [disputing other grounds].) It is further undisputed that Plaintiff was using the bikeway recreationally at the time of the accident. (Pltfs.’ Sep. St. No. 22 [and evidence cited therein].) On the other hand, unlike any cases cited by Defendant, it is undisputed that one of the uses of the location is public automobile traffic and parking. (See Def.’s Sep. St. No. 5 [and evidence cited therein]; see Pltf.’s Sep. St. No. 5 [disputing on other grounds].) Plaintiff submits evidence that the parking lot is